

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

S.P.F. LOGISTICS, INC., *Complainant*

v.

HAPAG-LLOYD AG, *Respondent*.

DOCKET NO. 24-24

Served: September 17, 2025

ORDER OF: Erin M. WIRTH, *Chief Administrative Law Judge*.

SUPPLEMENTAL SCHEDULING ORDER

On September 16, 2025, the parties filed a joint status report (“JSR”). The parties provide a proposed schedule for the completion of discovery and briefing. The parties indicate that they have exchanged discovery documents, anticipate utilizing expert witnesses, conferred with CADRS, and continue to engage in settlement discussions. JSR at 1-2. The proposed schedule is consistent with the Scheduling Order issued on June 25, 2025.

The parties again propose a deadline for dispositive motions at the close of discovery. Dispositive motions at the close of discovery are disfavored as they delay briefing and can be challenging to resolve without the ability to decide disputed facts. Therefore, the parties will be permitted to file dispositive motions only if they also file a joint stipulation of facts to be used both for the dispositive motion(s) and for the briefing. In the event the parties choose not to file dispositive motions, they may utilize the time until November 4, 2025, to complete discovery.

The parties are hereby **ORDERED** to follow this schedule:

September 19, 2025 Parties identify experts and provide expert reports to each other.

September 30, 2025 Deadline for completion of non-expert depositions.

October 15, 2025 Rebuttal expert reports provided to each other.

October 20, 2025 Deposition of experts completed. Close of discovery.

November 4, 2025 Deadline for dispositive motions with stipulated facts.

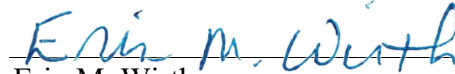
December 4, 2025 Complainant’s initial brief, proposed findings of fact, and appendix.

January 9, 2026 Respondent’s opposition brief, responses to proposed findings of fact, proposed findings of fact, and appendix.

January 26, 2026 Complainant’s reply and responses to proposed findings of fact.

The parties are encouraged to continue discussing settlement of this proceeding. However, such discussion will not stay other deadlines in the proceeding as engaging in discovery could provide evidence that assists the parties in resolving their differences, while delays hinder the parties' progress. If a settlement is reached, the parties must file a motion requesting approval of it along with a copy of the settlement. 46 C.F.R. § 502.72(a)(3).

The parties should review the requirements in the Initial Order and the briefing requirements in the Scheduling Order. Failure to properly file briefing and appendices can result in additional costs to refile and may delay the proceeding.


Erin M. Wirth
Chief Administrative Law Judge